SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT No. 29-05-2025

This Agreement is dated 29 May 2025 (**Agreement**)

PARTIES

(1) **FintechFuel LTD**, incorporated and registered in Marshall Islands with registered address Trust Company Complex, Ajeltake Road, Ajeltake Island, Majuro, Marshall Islands MH96960 and company registration number 121558 (**Supplier**)

(2) **XOPTION SOFTWARE S.R.L**, incorporated and registered in COSTA RICA with registered address Del Plantel de tránsito, 350mts al Oeste, condominio Vista de las Flores, Casa #3, Santa Cecilia, San Francisco de Heredia, Costa Rica, Area Code: 40103 and company registration number 3-102-900368 (**Client**) (the Supplier and the Client to be collectively referred to as the **Parties** and each one as a **Party**)

BACKGROUND

A. The Supplier owns and operates and/or has secured the right to operate and sublicense the use of an Internet based electronic multi-asset trading Platform which it makes available to its clients online for use under their own branding and via which, such clients, enter directly into private transactions and legal relationships with their own customers.

B. The Supplier may also provide a variety of Additional Services (as defined below) depending on what will be agreed between the Parties.

C. The Client wishes to make use of the Internet based Platform under its own brand and name (**Branded Platform**) and thereon make it available to its own customers, being speculative traders, for its own business purposes and in strict conformity with the terms and conditions of this Agreement.

D. The Supplier has agreed to provide, and the Client has agreed to take and pay for the Supplier's services subject to the terms and conditions of this Agreement.

E. The Parties agree and confirm that this Agreement is concluded in the course of each Party's commercial activity, and neither Party is considered as a consumer.

NOW IT IS HEREBY AGREED:

1. INTERPRETATION

1.1. The definitions and rules of interpretation applicable to this Agreement can be found in Schedule 2.

1.2. Clause, schedule and paragraph headings shall not affect the interpretation of this Agreement.

1.3. A person includes an individual, corporate or unincorporated body (whether or not having separate legal personality).

1.4. A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.5. Unless the context otherwise requires, words in the singular shall include the plural and, in the plural, shall include the singular.

1.6. A reference to a law, statute or statutory provision is a reference to it as it is in force as at the date of this Agreement.

1.7. A reference to writing or written includes faxes.

1.8. References to Clauses and schedules are to the Clauses and schedules of this Agreement; references to paragraphs are to paragraphs of the relevant schedule to this Agreement.

2. SCOPE OF THE AGREEMENT AND SERVICES

2.1. Agreement

(a) This Agreement, including any policies and/or documents, including without limitation to each signed Order, Acceptance Certificate and/or other terms and conditions, policies, handbooks, manuals, which are incorporated into this Agreement by reference, constitutes the entirety of the Agreement and legal understanding of the Parties under which the Supplier will provide and the Client shall use the Services.

(b) In the event of conflict, this Agreement shall prevail over any document incorporated by reference herein, except to the extent that such conflicting document specifically references the conflicting section of this Agreement and clearly states that the conflicting document is essentially an amending document and shall therefore prevail and such document is signed by an authorised representative of the Supplier.

Jakub Novacek Ada Aguilera

2.2. Services and Branded Platform

The Supplier shall provide the Services and Implementation Services in accordance with the following:

(a) On the Effective Date, the Parties shall sign and deliver to each other this Agreement, the Order,

(b) The Supplier shall proceed with the Implementation Services, and the Supplier shall deliver the Branded Platform to the Client no later than by the end of duration of Implementation Services as agreed in the Order (**Delivery Date**),

(c) The Client shall proceed to its own testing of the Branded Platform, and shall deliver the Acceptance Certificate to the Supplier, not later than within 5 calendar days from the Delivery Date. Acceptance Date shall be deemed to have occurred where, the Client (i) delivers a duly signed Acceptance Certificate to the Supplier or (ii) fails during the above timeframe, to deliver the Acceptance Certificate and did not notify the Supplier of any defects detected, whichever occurs first (**Acceptance Date**),

(d) If the Client notify the Supplier of any defects regarding the Branded Platform caused by the Supplier's actions within 5 calendar days from the Delivery Date, the Supplier shall define the reasons of the defects during 10 calendar days and agree with the Client the deadline and order of elimination of the defined defects.

(e) Upon the Acceptance Date, the Supplier shall provide the Services as the same are agreed under the Order and in accordance with the terms and conditions of this Agreement.

2.3. Subject to the terms of this Agreement, the Supplier will use commercially reasonable efforts to provide the Client the Services in accordance with the agreed service levels.

2.4. Additional Services

The Parties may agree for the provision of any Additional Services and respective applicable fees by entering into a new Order. The list of Additional Services depends on the Client's request and the Supplier's ability to provide these Additional Services in accordance with the Agreement.

For the avoidance of doubt, the conclusion of any new Order for Additional Services shall not cancel, amend, or affect the validity or enforceability of any previously concluded Orders, which shall remain in full force and effect unless expressly agreed otherwise by the Parties in writing.

2.4.1. Branded Mobile Application

(a) The Parties may agree on the provision of such Additional Service as the creation of branded mobile application (**Branded Mobile Application**) for the Client on Android and/or iOS systems.

(b) The Branded Mobile Application has the same functionality and capabilities as the purchased Branded Platform, subject to technical features and limitations specific to mobile applications.

(c) The Supplier disclaims any warranty that the Branded Mobile Application will be published on Android apps on Google Play or the Apple App Store.

2.5. Technical Changes

The Client may request from time to time the Supplier for technical changes to the Branded Platform by submitting a Change Note Request with the Supplier. The Supplier reserves the right upon its sole discretion to refuse implementation of any request for no cause.

2.6. The Client understands and acknowledges that the Supplier is a software development company and does not provide nor offers any kind of financial, investment, brokerage, trading and/or hosting services in any local or international currency or stock market, nor is the Supplier involved in any respect, directly or indirectly in any commission-based payments concerning any trading operations of the Client.

2.7. The Client acknowledges and agrees that the Applicable Law in some jurisdictions may prohibit or limit trading activity on some or all instruments, and the Branded Platform shall not be used in such jurisdictions and the Client shall not use the Branded Platform in countries where it has not relevant authorization.

2.8. From time to time the Supplier may: modify the Branded Platform by issuing updates and make new features, functionality, applications or tools available in respect of the Services, whose use may be subject to the Client's acceptance of further terms and conditions and shall give the Client prompt written notice of material modifications to the Services and any such new features, functionality, applications or tools.

2.9. This Agreement shall not prevent the Supplier from entering into similar agreements with third parties, or from independently developing, using, selling or licensing documentation, products and/or services which are similar to those provided under this Agreement.

3. LICENSE TO USE THE SERVICES

3.1. License

Subject to the Client not being in breach of its payment obligations, the restrictions set out in this clause and the other term and conditions of this Agreement, the Supplier hereby grants to the Client a personal non-exclusive, non-assignable, royalty free, non-transferable right, without the right to grant sublicenses during the Term:

(a) To permit the Authorised Users access and use the Branded Platform, Services and Documentation online solely for the Client's business operations,
(b) To operate the Branded Platform under its Marks,
(c) To promote and make available the Branded Platform to End-Users and thereupon enter into trading transactions and a legal relationship with them,
(d) To use the Branded Platform and the Services solely for the purposes of this Agreement and its business and not in any resale or outsourcing capacity.

3.2. Personal Right

The rights provided under this clause are granted to the Client only, and shall not be considered granted to any third party, in particular any Affiliate, subsidiary or holding company of the Client, unless the Supplier provides its written approval.

3.3. White Label

The Client is authorised to use the Platform on a white-label basis under its own logo and branding through which End-Users shall be able to conduct real-time trading transactions with the Client directly. The Client shall use the Branded Platform, without displaying the Supplier trademarks and branding, to promote the Branded Platform to prospective and actual End Users. The Client shall own and/or have the right to use all IPR in and to all of its Marks and shall have sole responsibility for the legality, reliability, integrity, accuracy and quality of the content in the Branded Platform.

3.4. License Restrictions

3.4.1. The license granted to the Client in this clause, is subject to the Client complying at all times with the following restrictions and that the Client shall procure each and any Affiliate and/or third party to comply with the below restrictions:
(a) the Client shall not, and shall not permit anyone to, directly or indirectly: reverse engineer, decompile, disassemble or otherwise attempt to discover the Source Code, object code or underlying structure, ideas, know-how or algorithms relevant to the Services or any software, documentation or data related to the Services or to any software; modify, translate, or create derivative works based on the Services, Documentation, Supplier Data or any software; use the Services or the Documentation in order to build a similar product or competitive product; transfer, assign, distribute, display, disclose, or otherwise commercially exploit, or otherwise make the Services, any software and Supplier Data available to any third party except the Authorised Users or the End Users; attempt to obtain, or assist third parties in obtaining, access to the Services, any software and Supplier Data against the terms of the Agreement; or remove any proprietary notices or labels in the software used to provide the Services or in the Documentation, attempt at any time unauthorized use and/or access to the Services and/or the Supplier's IPRs; participate in any illegal, deceptive, misleading or unethical practices including, but not limited to, disparagement of the any software or other practices which may be detrimental to the Supplier's software, Supplier or the public interest,
(b) the Client shall not sell, resell, distribute, host, lease, rent, license or sublicense, in whole or in part the Services, the Branded Platform, or use the Services or the Branded Platform, to provide processing services to third parties, or otherwise use the same on a *service bureau* basis,
(c) the Client shall not obliterate, alter or remove any proprietary or IPR notices from the Services, the Branded Platform and/or Documentation,
(d) the Client shall not disclose or publish in any way, without the Supplier's prior written consent, performance or capacity statistics or the results of any benchmark test performed on the Services,
(e) no unauthorised person may gain access to the Supplier's IP, Services, Supplier Data or Client's accounts in any way, the Services and/or Documentation are not available to any person other than Authorised User,
(f) implement adequate security measures relating to accessing and using the Services, the Documentation and other Supplier Data and Client's accounts,
(g) require each Authorised User shall keep a secure password for his or her use of the Services, and that each Authorised User shall be reminded of the need for password protection measures including encryption and confidentiality at all times,
(h) the Client shall not access, store, distribute or transmit any Viruses, or any material in the course of its use of the Services that: is unlawful, harmful, threatening, defamatory, obscene, infringing, harassing or racially or ethnically offensive; facilitates illegal activity; depicts sexually explicit images; promotes unlawful violence; is discriminatory based on race, gender, colour, religious, belief, sexual orientation, disability; or is otherwise illegal or causes damage or injury to any person or property,
(i) the Client shall promptly notify the Supplier in the event of suspecting or becoming aware of any violations of this clause.

3.4.2. The Supplier reserves the right, acting reasonably and proportionately, and without prejudice to its other rights towards the Client, to immediately and with prior notice disable the Client's or any other person's access to any account or data that breaches the provisions of this Clause, provided that the Supplier shall inform the Client of such action as soon as reasonably practicable.

3.4.3. Violation of this Clause shall constitute a material breach of this Agreement and shall entitle the Supplier to terminate it immediately without prejudice to any of its rights and remedies.

3.5. Use of De-Identified Data

The license granted to the Client under this clause is subject to an additional condition that the Client to which the Client hereby irrevocably agrees by entering into this Agreement, whereby the Supplier shall freely and with no disruptions, collect, aggregate, use and disclose Services data relating to the Client and/or End-User's traffic, routing arrangements, rates etc. so long as such data is de-identified (i.e. cannot be connected to a particular End-User).

3.6. Retention of Rights

This clause must be read in conjunction with the Proprietary Rights clause of this Agreement.

3.7. Reporting

The Client shall report without any undue delay to the Supplier in relation to any violation of this clause and shall take such steps as may be reasonably requested by the Supplier to remedy any such violation and to prevent any future violations.

4. CLIENT'S OBLIGATIONS AND RESPONSIBILITIES

4.1. The Client shall:

(a) provide the Supplier with all necessary cooperation in relation to this Agreement, and all necessary access to such information as may be required by the Supplier in order to provide the Services, including but not limited to the Client Data, security access information and configuration services;

(b) without affecting its other obligations under this Agreement, comply with all applicable laws and regulations with respect to its activities under this Agreement and in connection with its use of the Services, including those laws related to data privacy, international communications, and the transmission of technical or personal data. The Client acknowledges that the Supplier exercises no control over the content of the information transmitted by the Client or the End Users through the Branded Platform. The Client shall not upload, post, reproduce or distribute any information, software or other material protected by copyright, privacy rights, or any other intellectual property rights without first obtaining the permission of the owner of such rights;

(c) carry out all other Client responsibilities set out in this Agreement in a timely and efficient manner. In the event of any delays in the Client's provision of such assistance as agreed by the Parties, the Supplier may adjust any agreed timetable or delivery schedule as reasonably necessary;

(d) ensure that the Authorised Users, the End Users use the Services and the Documentation in accordance with the terms and conditions of this Agreement and shall be responsible for any Authorised User's and/or End User's breach of this Agreement;

(e) obtain and shall maintain all necessary licences, consents, and permissions necessary for the Supplier, its contractors and agents to perform their obligations under this Agreement, including without limitation the Services, to the extent those obligations form part of, or constitute an outsourcing of, the Client's operations;

(f) ensure that its network, Equipment and systems comply with the relevant specifications provided by the Supplier from time to time; and

(g) be, to the extent permitted by law and except as otherwise expressly provided in this Agreement, solely responsible for procuring, maintaining and securing its network connections and telecommunications links from its systems to the Supplier's data centres, and all problems, conditions, delays, delivery failure and all other loss or damage arising from or relating to the Client's network connections or telecommunications links or caused by the Internet or other source;

(h) provide assistance as reasonably requested by the Supplier in connection with the installation, implementation and/or configuration of the Services including, if requested, timely providing the Supplier with access to Client's facilities, network, hardware and software, reasonably requested by the Supplier in order to provide the Services hereunder;

(i) shall be solely responsible for securing internet connectivity in order to access and use the Services. The Client hereby acknowledges and confirms that problems with the internet, including equipment, software and/or network failure, impairments, or congestion may prevent, interrupt and/or delay the Client's access to the Services. The Client shall be responsible for ordering, installing, maintaining the proper functioning of,

and paying for any communications connections at the Client's terminals or other access devices at the Client's sites.

4.2. In order for the Supplier to be able to perform any Implementation Services up to the Delivery Date, including but limited to implementing and setting up the Services, the Client hereby agrees to provide the Supplier with all data and information required for the provision of the Services, including the Implementation Services for set up and configuration purposes at Delivery, in a timely manner. Where the Client or any third party or Affiliate controlled by the Client, requires any changes to the Implementation Services, then provided that such changes are feasible as determined by the Supplier upon its sole discretion, any Delivery date shall be postponed accordingly whilst the Client shall pay the Supplier an additional implementation services fee for the additional and/or revised Implementation Services. In the event where the requested change cannot be implemented, the Supplier shall not be liable to return any Implementation Services Fees already paid by the Client.

4.3. The Client hereby acknowledges and confirms that the ability of the Supplier to provide the Services requires at all times the Client's cooperation including in providing the Supplier with timely, adequate, and accurate responses to requests for data, documents, information, materials, decisions and/or approvals. The Supplier shall not be liable for non-performance and/or disruption of any Service to the extent where the Client delays or refuses to provide the Supplier with such data, information and/or in general cooperate.

4.4. The Client shall always be responsible for the accuracy, quality, integrity, legality, adequacy and reliability of all the Client data that the Client submits to the Supplier and any results obtained therefrom. The Supplier shall have the right to rely on such information at all time without the obligation of checking the accuracy of such data.

4.5. As a security measure, the Supplier shall assign to the Client one or more user IDs to enable the Authorised Users to access and use the Services. The Client shall maintain control of, administer and hereby accept responsibility for all use of such user IDs by the Client and any Authorised Users. The Client shall restrict the disclosure of such user IDs to the Authorised Users on a need-to-know basis only. The Client shall take all reasonable security measures to protect against the theft, loss, or fraudulent use of such use IDs and the Client shall not later than 24 hours, notify the Supplier of any unauthorised use of any Authorised User's IDs, breach of security and/or suspected theft, loss or fraudulent use of such assigned user IDs.

4.6. The Client agrees to use its best efforts to ensure that no Software component (Source Code, Object Code and the like) is displayed outside or is copied outside of the Service environment or distributed in any way to any third party except as may be permitted under this Agreement.

4.7. The Client hereby confirms and agrees to comply at all times with all technical specifications and with all security and operating guidelines, procedures, and protocols provided to the Client by the Supplier from time to time, including pertaining to use of passwords, any matters addressed under any Order and/or the Documentation.

4.8. The Client hereby confirms and agrees that it will not, and its Affiliates and/or employees, will not, attempt to gain or allow access to any data, files, or programs to which they are not entitled under this Agreement, and that if such access is obtained and Supplier's Confidential Information has been compromised, the Client will immediately inform the Supplier and return such materials.

4.9. The Client shall be solely responsible for maintaining adequate controls over its processing and data transmissions but excluding transmissions within the Branded Platform. The Client acknowledges and accepts that the Supplier is not responsible for checking, verifying, or editing the content or completeness of the information transmitted through the Services. The Supplier will use reasonable commercial efforts to notify the Client of any detected non-oncoming processing and/or transmissions.

4.10. The Client shall report to the Supplier, without any undue delay, in relation to any violation of this clause and shall take such further steps as may be requested by the Supplier to remedy any such violation and to prevent future violations.

4.11. The Client shall be responsible for obtaining and maintaining any Equipment and ancillary services needed to connect to, access or otherwise use the Services. The Client shall also be responsible for maintaining the security of the Equipment, the Client account, passwords (including but not limited to administrative and user passwords) and files, and for all uses of the Equipment with or without Client's knowledge or consent. The Client acknowledges that the Supplier does not provide Internet access nor any Equipment installation services, therefore the Supplier cannot be held liable for any communication and/or Equipment failure.

4.12. The Client accepts and acknowledges that the Services comprises the provision of access to the Branded Platform and is in no way providing financial, investment or other professional advice. The Client is responsible for deciding whether the Services, the Branded Platform, tools and functionality made available

as part of the Services (including any Data, or calculations and assumptions) are suitable for the use made of them by the Client and its Authorised Users and the End Users.

4.13. The Client shall keep up to date and accurate books, accounts and records relating to the performance of this Agreement, sufficient to show the Client's compliance with this Agreement and to verify the Fees. The Client shall keep such books and records for the term of this Agreement and for a period of 7 years after its termination or expiry, and shall give the Supplier or its nominated auditor such access to those records as it may reasonably require, subject to any other period required by the Data Protection Legislation or other Applicable Law.

4.14. The Client undertakes to inform the Supplier, within 15 business days, of any changes in the legal/corporate status of the Client's company (e.g. change of name, address, directors, re-domiciliation etc.) in order to apply the necessary changes in the Branded Platform and/or compliance records.

4.15. The Client shall designate to the Supplier a contact person as a Project Manager to represent it in relation to the performance of this Agreement. The manager shall be authorised on behalf of the Client to make decisions on a day to day basis regarding the operation of the Services.

5. SUPPLIER'S OBLIGATIONS

5.1. The Supplier undertakes that the Services will be performed substantially in accordance with the Documentation and the Agreement and with reasonable skill and care.

5.2. The undertakings of this clause shall not apply to the extent of any non-performance which is caused by:

(a) use of the Services contrary to the Supplier's instructions,

(b) modification or alteration of the Services or the Branded Platform or any of its components, by any party other than the Supplier;

(c) the Client's or End User's Equipment; and/or

(d) the Client's or End User's Internet, network or telecommunications connection.

5.3. If the Services do not conform with the foregoing undertaking, the Supplier shall use all reasonable commercial endeavours to correct any such non-conformance promptly. Such corrections or substitutions constitutes the Client's sole and exclusive remedy for any breach of the undertaking set out in this Clause.

5.4. The Supplier warrants that it has and will maintain all necessary licences, consents, and permissions necessary for the performance of its obligations under this Agreement.

5.5. The Supplier may have to subcontract any of its obligations or Services under the Agreement in its sole discretion without requiring consent or notification of the Client. The Supplier shall remain responsible to the Client for the performance of any subcontracted obligations, unless otherwise specified in writing by the Supplier.

5.6. The Supplier shall designate to the Client in the Order, a Project Manager for the purposes of this Agreement which shall serve also as the contact person. The Supplier can change the Project Manager at any time by notifying the Client in writing.

6. FEES AND PAYMENT PROCEDURE

6.1. In consideration for the Services the Client shall pay the Fees to the Supplier in accordance with this clause and each Order.

6.2. The Client shall pay all invoices within 5 calendar days after the Client receives the invoice unless otherwise expressly agreed in the Order.

6.3. Fees are non-cancellable and non-refundable, and are exclusive of value added tax or other taxes, which (if applicable) shall be added to the Supplier's invoice(s) at the appropriate rate.

6.4. If the Supplier has not received payment within 10 calendar days after due date, and without prejudice to any other rights and remedies of the Supplier:

(a) the Supplier may, without liability to the Client, disable the Client's password, account and access to all or part of the Services and the Supplier shall be under no obligation to provide any or all of the Services while the invoice(s) concerned remain unpaid; and

(b) interest shall accrue on a daily basis on such due amounts at an annual rate equal to 2% over the current base lending rate of the bankers in the Republic of Cyprus from time to time, commencing on the due date and continuing until fully paid, whether before or after judgement.

6.5. The Client shall transmit the money funds by bank transfer to the Supplier's bank account, or by any other payment method as may be agreed with the Supplier. The Client's obligation to pay fee to the Supplier is considered fulfilled from the moment the funds are credited to the Supplier's account.

6.6. The Supplier shall be entitled to increase the Fees:

(a) The Standard Fees, at the start of each renewal period upon 30 day's prior written notice to the Client and the Order shall be deemed to have been amended accordingly,

6.7. The Implementation Services Fees: at any time upon written notification by the Supplier to the Client, or as otherwise mutually agreed between the Parties.

6.8. If the Supplier discovers that the Client has underpaid fees to the Supplier, then without prejudice to the Supplier's other rights, the Client shall pay to the Supplier an amount equal to such underpayment as calculated in accordance with the prices set out in the Order within 10 Business Days of receipt of an invoice from the Supplier in respect of such underpayment.

6.9. If the Client discovers that it has underpaid fees or any other fees to the Supplier, then without prejudice to the Supplier's other rights, the Client shall alert the Supplier to the underpayment within 5 days of becoming so aware, and then pay to the Supplier an amount equal to such underpayment as calculated in accordance with the prices set out in the Order within 10 Business Days of receipt of an invoice from the Supplier in respect of such underpayment.

7. CLIENT DATA

7.1. The Client shall own all right, title and interest in and to all of the Intellectual Property Rights in the Client Data.

7.2. The Client shall have exclusive responsibility for the legality, reliability, integrity, accuracy, timeliness and quality of all such Client Data; and acknowledges that the accuracy of any reports or other Data output by or created using the Services are entirely dependent on the reliability, integrity, quality, accuracy and timeliness of the Client Data.

7.3. When using, sharing or communicating Client Data to the Supplier or via the Services, the Client shall apply reasonable skill and care that it is accurate and/or fit for the purpose to which it will be applied, in all material respects.

7.4. The Supplier shall not:

(a) in any way commercially exploit any of the Client Data without the Client's prior written consent (which may be withheld for any reason):

(b) make any of the Client Data accessible (including the provision of access through a database or other application populated with the Client Data for re-selling, sub-licensing, transferring or disclosing the Client Data) by any means, including any electronic means;

(c) combine any Client Data with other Data or adapt the Client Data wholly or in part;

(d) remove any copyright, trade mark or other notice included with the Client Data.

7.5. In the event of any loss or damage to Client Data, the Client's sole and exclusive remedy against the Supplier shall be for the Supplier to use reasonable commercial endeavours to restore the lost or damaged Client Data from the latest back-up of such Client Data maintained by the Supplier in accordance with its back-up policy. The Supplier shall not be responsible for any loss, destruction, alteration or disclosure of Client Data caused by any third party (except those third parties sub-contracted by the Supplier to perform services related to Client Data maintenance and back-up for which it shall remain fully liable).

7.6. Each Party shall comply with all requirements of the Data Protection Legislation applicable to its activities. For clarity the Parties have agreed to enter into the Data Processing Agreement which sets out the scope, nature and purpose of processing by the Parties, the duration of the processing and the types of personal data and categories of data subject. This Clause is in addition to, and does not relieve, remorse or replace, a Party's obligations or rights under the applicable Data Protection Legislation.

7.7. Subject to the terms and conditions of this Agreement, the Client grant to the Supplier a non-exclusive, transferable, royalty-free licence to copy, use, process, store, configure, perform, display and transmit the Client Data solely as required or relevant (in the opinion of the Supplier) to provide the Services to the Client.

8. PROPRIETARY RIGHTS

8.1. All Intellectual Property Rights in the Platform, the Services and the Supplier Data shall remain the exclusive property of the Supplier. The Supplier expressly reserves all IPRs with respect to the Supplier IPR not expressly granted to the Client by this Agreement. The Supplier may, in its sole discretion add, delete or change some or all the features included within the Services and may change requirements for Authorised Users, at any time without affecting any commitments previously agreed to in this Agreement. Without limiting the generality of the foregoing, the Client acknowledges and agrees that (a) the Supplier and its licensors retain all right, title and interest in and to the Supplier IPR and the Services (including any corrections, updates, adaptations, enhancements to either or authorised copies of either) and to the Services, and the Client shall not acquire any rights, express or implied in the Supplier IPR, and (b) any modifications, updates

and/or upgrades to the Services made for the Client's benefit shall in no way affect or diminish the Supplier's right, title and interest in and to the Supplier IPRs. The Client acknowledges that the Supplier may create original works for third parties that may appear similar to a deliverable provided hereunder. The Client agrees that, so long as such original work does not embody and is not created with reference to any of the client's Confidential Information, the Supplier shall not be prevented from independently creating original, but similar, works for the benefit of third parties or incorporating a deliverable as part of the general release of the Supplier Services.

8.2. The Client acknowledges and agrees that the Supplier and/or its licensors own all Intellectual Property Rights in the Services, the Platform and the Supplier Data. Except as expressly stated herein, this Agreement does not grant the Client any rights to, under or in, any Intellectual Property Rights, or any other rights or licences in respect of the Supplier Data.

8.3. The Supplier confirms that it has and/or has secured all usage rights into, all the Intellectual Property Rights or licences of such rights in relation to the Services, the Platform and the Supplier Data that are necessary to grant all the rights it purports to grant under, and in accordance with, the terms of this Agreement.

8.4. If the Client wishes to display the Supplier's Marks in relation to its use of the Services, the Client shall:

(a) obtain a written licence from the Supplier; and

(b) comply with any Mark guidelines and/or licence restrictions (if applicable) provided from time to time.

8.5. All uses of a party's Marks under this Agreement, including all goodwill arising, shall accrue solely to the benefit of the Party owning the Intellectual Property Rights in those Marks.

9. CONFIDENTIALITY

9.1. Each Party may be given access to Confidential Information from the other Party in order to perform its obligations under this Agreement. A Party's Confidential information shall not be deemed to include information that:

(a) is or becomes publicly known other than through any act or omission of the receiving Party;

(b) was in the other Party's lawful possession before the disclosure;

(c) is lawfully disclosed to the receiving Party by a third party without restriction on disclosure; or

(d) is independently developed by the receiving Party, which independent development can be shown by written notice.

9.2. Each Party shall hold the other's Confidential Information in confidence and not make the other's Confidential Information available to any third party, or use the other's Confidential Information for any purpose other than the implementation of this Agreement.

9.3. Each party reserves all rights in its Confidential Information. No rights or obligations in respect of a party's Confidential Information other than those expressly stated in this Agreement are granted to the other Party, or to be implied from this Agreement.

9.4. Each Party shall take all reasonable steps to ensure that the other's Confidential Information to which it has access is not disclosed or distributed by its employees or agents in violation of the terms of this Agreement.

9.5. A Party may disclose Confidential Information to the extent such Confidential Information is required to be disclosed by law, by any governmental or other regulatory authority or by a court or other authority of competent jurisdiction, provided that, to the extent it is legally permitted to do so, it gives the other Party as much notice of such disclosure as possible and, where notice of disclosure is not prohibited and is given in accordance with this Clause, it takes into account the reasonable requests of the other Party in relation to the Data of such disclosure.

9.6. The Client acknowledges that details of the Services (including the Supplier Data, the Branded Platform) and the results of any performance tests of the Services constitute the Supplier's Confidential Information.

9.7. The Supplier acknowledges that the Client Data is the Confidential Information of the Client.

9.8. No Party shall make, or permit any person to make, any public announcement concerning this Agreement without the prior written consent of the other Party (such consent not to be unreasonably withheld or delayed and not later than within 7 days from the date of the written request), except as required by law, any governmental or regulatory authority (including, without limitation, any relevant securities exchange), any court or other authority of competent jurisdiction.

9.9. The Supplier shall not be responsible for any loss, destruction, alteration or disclosure of Confidential Information caused by any third party.

9.10. The above provisions of this Clause shall survive termination of this Agreement, however arising.

10. INDEMNITY

10.1. The Client shall indemnify and hold harmless the Supplier against all claims, demands, actions, suits, damages, liabilities, losses, settlements, judgments, costs and expenses including but not limited to legal fees, expenses and costs, whether or not involving a third-party claim, arising out of:

(a) the Client's use of, or inability to use, the Services in connection with the Client's business and the End Users' businesses provided using or offering the Branded Platform to the End Users, or the Client's use or inability to use the Services;

(b) the use of the Services by the Client without proper regulatory authorisation or permission under Applicable Law (**Authorisation**);

(c) The Client's IPRs and/or Marks,

(d) The Client's or End User's use of the Services and/or Documentation,

(e) any breach by the Client of this Agreement, and

(f) the non-performance by the Client of any agreement or transaction with a counterparty for the use of the Services and/or the Branded Platform.

10.2. In the defence or settlement of any claim under this Clause, the Supplier may: procure the right for the Client to continue using the Services, the Branded Platform; replace or modify the Services, the Branded Platform so that it or they become non-infringing; or, if such remedies are not reasonably available, terminate this Agreement on 15 calendar days' notice to the Client without any additional liability or obligation to pay liquidated damages or other additional costs to the Client.

10.3. Except as specifically provided in this Agreement, the enforcement and protection of a Party's Intellectual Property Rights shall be in the sole discretion and control of that Party and any and all recoveries resulting from such enforcement or protection actions shall be retained by that Party.

10.4. In no event shall the Supplier, its employees, agents and subcontractors be liable to the Client to the extent that the alleged infringement is based on:

(a) a modification of the Services or Documentation by anyone other than the Supplier;

(b) the use of the Services or Documentation by the Client or any End-User in combination with any Client content;

(c) the use of the Services or Documentation by the Client or any End-User after notice to the Client of the alleged or actual infringement from the Supplier or any appropriate authority.

10.5. The foregoing clause states the Client's sole and exclusive rights and remedies, and the Supplier's (including the Supplier's employees', agents' and subcontractors') entire obligations and liability, for infringement of any patent, copyright, trade mark, database right or right of confidentiality.

11. LIMITATION OF LIABILITY

11.1. Except as expressly and specifically provided in this Agreement:

(a) the Client shall be exclusively responsible for the results obtained from the use of the Services and the Supplier Data by the Client, and for conclusions drawn from such use. The Supplier shall have no liability for any damage caused by errors or omissions in any information, instructions or scripts provided to the Supplier by the Client in connection with the Services, or any actions taken by the Supplier at the Client's direction;

(b) all warranties, representations, conditions and all other terms of any kind whatsoever implied by statute or common law are, to the fullest extent permitted by applicable law, excluded from this Agreement;

(c) the Services, the Branded Platform and the Supplier Data are provided to the Client on an "as is" and "as available" basis and the Supplier does not warrant that the use of the online Branded Platform will be uninterrupted or error-free or available at all times, and the Supplier does not warrant, represent or undertake that the Branded Platform will remain compatible with, or operate without interruption on, any Equipment provided or used by the Client or that it will achieve its intended purpose or results;

(d) without limiting the foregoing, the Client acknowledges and agrees that the Supplier makes and the Client receives no warranties, whether express, implied, or statutory regarding or relating to the subject matter hereof. To the extent permitted by law, the Supplier specifically disclaims all implied warranties of merchantability, fitness for a particular purpose and non-infringement with respect to the subject matter hereof, including without limitation the Branded Platform;

(e) notwithstanding anything in this Agreement to the contrary, the Client acknowledges and agrees that technical problems may prevent the Supplier from providing all or part of the Branded Platform due to telecommunications service, Internet connection, internet service provider, or any other third-party communications providers, outages or service interruptions, or any other failure or problem not specifically attributable to the Supplier;

(f) in no event shall the Supplier be liable hereunder to the Client or any third party for any damages or loss resulting from such technical problems.

11.2. The Supplier does not warrant that:

(a) that the Services, the Software, the Documentation, Supplier Data and/or the Data obtained by the Client through the Services will meet the Client's requirements;

(b) the Branded Platform or the Services will be free from Vulnerabilities; and/or

(c) the Branded Platform, the Documentation, or the Services will comply with any Heightened Cybersecurity Requirements.

11.3. In no event shall the Supplier, or any of its employees, Affiliates, contractors, directors, officers be held liable to the Client or any third party, whether in contract, tort (including negligence), or otherwise, whether foreseeable or not, for:

(a) Any direct, indirect, incidental, special, punitive or consequential damages (including without limitation any loss or corruption of data, interruption, computer failure or pecuniary loss) arising out of the use or inability to use the Services or the Branded Platform and/or services provided via the Supplier's websites with Supplier's domain name;

(b) Any loss of revenue, income, goodwill, business, profits or anticipated savings (whether direct or indirect), arising out of the use or inability to use the Services, the Branded Platform provided via any of the Client's websites;

(c) Any loss or damage arising out of or in connection with:

(i) Any disruption or delay in any communication when using the Services provided via the Client's websites and/or websites with the Client's domain name;

(ii) The suspension or termination of this Agreement by either Party;

(iii) The Client's decision not to update upon release of new versions of any software.

11.4. The Client warrants that he is the owner or the licensee of any Client's Marks incorporated into the Branded Platform or if applicable to any Client's application. The Client shall indemnify the Supplier against all damages, liabilities, losses, costs or expenses, including but not limited to attorney's fees and costs, incurred in relation to or as a result of any third party claim that the use of the Client's Marks in connection with the Services and the Branded Platform, infringes its rights. In the event of such a third party claim the Client shall inform the Supplier and such Marks shall be replaced with immediate effect.

11.5. The Supplier's total aggregate liability in contract, tort (including negligence or breach of statutory duty), misrepresentation, restitution or otherwise, arising in connection with the performance or contemplated performance of this Agreement shall be limited to the total monthly fees for the Services paid during the 6 months immediately preceding the date on which the claim arose. The Supplier shall not be liable whether in tort (including for breach of statutory duty), contract, misrepresentation, restitution or otherwise for any loss of profits, loss of business, depletion of goodwill and/or similar losses or loss or corruption of data or information, or pure economic loss, or for any special, indirect or consequential loss, costs, damages, charges or expenses however arising under this Agreement.

12. TERM AND TERMINATION

12.1. This Agreement shall commence on the Effective Date and shall continue in full force and effect for the Term as specified in the Order, unless it is earlier terminated under this clause.

12.2. For the first Term either Party can terminate the Agreement by providing a 30 days' written notice prior to the end date of the first Term.

12.3. For any term following the Term (**Renewed Term**), either Party will have the right to terminate the Agreement without any cause by providing a 30 days' written notice to the other Party prior to the end of the then current Renewed Term. Without affecting any other right or remedy available to it, either Party may terminate this Agreement with immediate effect by giving written notice to the other Party if:

(a) the other Party fails to pay any amount due under this Agreement on the due date for payment and remains in default not less than 10 calendar days after being notified in writing to make such payment;

(b) the other Party commits a material breach of any other term of this Agreement which breach is irremediable or (if such breach is remediable) fails to remedy that breach within a period of 10 calendar days after being notified in writing to do so;

(c) the other Party repeatedly breaches any of the terms of this Agreement in such a manner as to reasonably justify the opinion that its conduct is inconsistent with it having the intention or ability to give effect to the terms of this Agreement;

(d) a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of that other Party.

12.4. The Supplier may terminate this Agreement immediately by notice in writing to the Client in the event the Client is reported and/or found liable by a national and/or international authority to have committed, or there is suspicion to have committed, a criminal activity or an act of a fraudulent and related activity and/or the Client has not secured an Authorisation. Furthermore, in cases where the Supplier has reasonable suspicions regarding the Client's involvement in fraud and the Client fails to respond to the Supplier's request for clarifications or supporting documents within a reasonable period, the Supplier shall have the right to terminate the Agreement and withdraw the licence.
12.5. On termination of this Agreement for any reason:
(a) all licences granted under this Agreement shall immediately terminate and the Client shall immediately cease all use of the Services, the Branded Platform and the Supplier Data;
(b) the Client shall immediately cease use of the Services thereunder;
(c) each Party shall return and make no further use of any equipment, property, Data and other items (and all copies of them) in its possession or control belonging to the other Party;
(d) the Supplier may destroy or otherwise dispose of any of the Client Data in its possession, unless the Supplier receives, no later than 10 calendar days after the effective date of the termination of this Agreement, a written request for the delivery to the Client of the then most recent back-up of the Client Data. The Supplier shall use reasonable commercial endeavours to deliver the back-up to the Client within 30 calendar days of its receipt of such a written request, provided that the Client has, at that time, paid all fees and charges outstanding at and resulting from termination (whether or not due at the date of termination), and the Client shall pay all reasonable expenses incurred by the Supplier in returning the Client Data;
(e) any rights, remedies, obligations or liabilities of the Parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the Agreement which existed at or before the date of termination shall not be affected or prejudiced; and
(f) any fees paid on the date of termination of this Agreement are non-refundable.

13. FORCE MAJEURE
The Supplier shall have no liability to the Client under this Agreement if it is prevented from or delayed in performing its obligations under this Agreement, or from carrying on its business, by acts, events, omissions or accidents beyond its reasonable control, including, without limitation, strikes, lock-outs or other industrial disputes (whether involving the workforce of the Supplier or any other party), failure of a utility service or transport or telecommunications network, act of God, war, riot, civil commotion, pandemics, malicious damage, compliance with any law or governmental order, rule, regulation or direction, accident, breakdown of plant or machinery, fire, flood, storm or default of suppliers or subcontractors, provided that the Client is notified of such an event and its expected duration.

14. CONFLICT
If there is an inconsistency between any of the provisions in the main body of this Agreement and the Schedules, the provisions in the main body of this Agreement shall prevail unless expressly stated to the contrary in this Agreement.

15. VARIATION
No variation of this Agreement shall be effective unless it is in writing and signed by the Parties (or their duly authorised representative(s)).

16. WAIVER
No failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

17. SEVERANCE
17.1. If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this Agreement.
17.2. If any provision or part-provision of this Agreement is deemed deleted the Parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

18. ENTIRE AGREEMENT

18.1. This Agreement (including the Schedules) constitutes the entire agreement between the Parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

18.2. Each Party acknowledges that in entering into this Agreement it does not rely on any undertaking, promise, assurance, or understanding statement, representation, assurance or warranty (whether made innocently or negligently), whether in writing or not, of any person (whether a Party to this Agreement or not) relating to the subject matter of this Agreement, that is not expressly set out in this Agreement.

18.3. Each Party agrees that it shall have no claim for innocent or negligent misrepresentation based on any statement in this Agreement.

19. ASSIGNMENT

19.1. The Client shall not, without the prior written consent of the Supplier, assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under this Agreement.

19.2. The Supplier may at any time assign, transfer, charge, sub-contract or deal in any other manner with all or any of its rights or obligations under this Agreement with the later notification of the Client.

20. NO PARTNERSHIP OR AGENCY

Nothing in this Agreement is intended to or shall operate to create a partnership between the Parties, or authorise either Party to act as agent for the other, and neither Party shall have the authority to act in the name or on behalf of or otherwise to bind the other in any way (including, but not limited to, the making of any representation or warranty, the assumption of any obligation or liability and the exercise of any right or power).

21. NOTICES

21.1. Any notice required to be given under this Agreement shall be in writing and shall be delivered by email or sent by pre-paid first-class post or recorded delivery post to the other Party at its address or the email address set out in the Order, or such other address as may have been notified by that Party for such purposes.

21.2. A notice delivered by email shall be deemed to have been received one hour after the time stamp shows when the email was sent as per the sent items folder to a valid and used email address. A notice by hand shall be deemed to have been received when delivered (or if delivery is not in business hours, at 9 am on the first business day following delivery). A correctly addressed notice sent by pre-paid first-class post or recorded delivery post shall be deemed to have been received at the time at which it would have been delivered in the normal course of post.

22. DISPUTE RESOLUTION AND ARBITRATION CLAUSE

22.1. If any dispute arises under this Agreement, the Parties' relationship managers shall, within 30 calendar days of a written request from one Party to the other setting out the nature and full particulars of the dispute, speak or meet in good faith to try to resolve the dispute.

22.2. All disputes and/or disagreements of any kind or description which may at any time, from the date of signing the present Agreement, either during the period of enforcement or at or after the expiration or' termination of same, arise between the contracting Parties hereof and which concern and/or are related to the interpretation, the validity or' any of them or by virtue of the present Agreement, or in any other way or in any other matter which is connected or arises in whichever way in relation to the subject matter of the present Agreement shall be referred to arbitration before one arbitrator to be appointed by the Cyprus Arbitration and Mediation Centre within 15 days from the date in which a relevant notification shall be sent by one party to the other for the appointment of an arbitrator with copy to the General Secretary of Cyprus Arbitration and Mediation Centre. Such arbitration shall be carried out by the rules of arbitration as applied by the Cyprus Arbitration and Mediation Centre. The language to be used in the arbitral proceedings shall be English. The place of arbitration shall be Nicosia, the Republic of Cyprus. The material and procedural law is the law of Cyprus.

23. GOVERNING LAW

This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of Cyprus.

Jakub Novacek Ada Aguilera

Signed on behalf of **Supplier**

Jakub Novacek

Name: Jakub Novacek
Title: Director

Signed on behalf of XOPTION SOFTWARE S.R.L

Ada Aguilera

Name: ADA VALERIA AGUILERA GARITA
Title: Director

SCHEDULE 1
to the SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT No. _____

ACCEPTANCE CERTIFICATE
to the SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT of _____ No. _____

This Acceptance Certificate is dated _____

Parties:

(1) _____, incorporated and registered in _____ with registered address _____ and company registration number _____ (**Supplier**)

(2) _____, incorporated and registered in _____with registered address _____ and company registration number _____ (**Client**)

Collectively referred to as the **"Parties"** or individually as a **"Party,"** have entered into this Acceptance Certificate (the **"Acceptance Certificate"**) under the SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT dated _____ No. _____ (the **"Agreement"**).
Terms and expressions defined in the Agreement shall have the same meaning when used in this Acceptance Certificate.

1. Client's Confirmations:
The Client hereby confirms and acknowledges that as of _____, being the Acceptance Date:
1.1. The Supplier has duly provided the Implementation Services, and as a result, the Branded Platform has been delivered and is fully operational on the Client's domain, as agreed in the Agreement.
1.2. All necessary documentation, materials, and user instructions for the operation and maintenance of the Branded Platform have been duly delivered by the Supplier.
1.3. The Client has examined and tested the Branded Platform, and it is satisfied with the results, performance, and functionality.
1.4. The Branded Platform is hereby formally accepted by the Client, in accordance with and subject to the terms of the Agreement. The execution and delivery of this Acceptance Certificate further confirms that the setup and customization services have been satisfactorily completed by the Supplier for all purposes under the Agreement and related Services.
1.5. The Client's representations and warranties, as set forth in the Agreement, are true, complete, and accurate as of the date of this Acceptance Certificate, with reference to the facts and circumstances as they exist on this date.
1.6. The Client's duly appointed and authorized technical representatives have reviewed and confirmed that the Branded Platform conforms to the Client's requirements and has been delivered in a condition meeting all agreed specifications.
1.7. No breach, default, or event of default has occurred or is continuing under the Agreement, and the Client has no right to assert any set-off, deduction, withholding, or counterclaim against the Supplier in respect of the Branded Platform or related Services.
2. This Acceptance Certificate, signed by the Parties, certifies the Supplier's full and proper performance of its obligations under the Agreement, specifically concerning the Implementation Services and delivery of the Branded Platform.
3. This Acceptance Certificate becomes effective as of the date of signature by both Parties and may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Electronic signatures or scanned copies of signed counterparts shall have the same legal effect as original signatures.

Signed by [insert] ……
Position: Director
For and on behalf of [insert for Supplier]
Signed by [insert] ……
Position: Director
For and on behalf of [insert for Client]

Jakub Novacek

Ada Aguilera

SCHEDULE 2
to the SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT No_____
Definition Rules and Interpretation

Acceptance Certificate: the certificate to be signed and delivered by the Client to the Supplier, in the form attached to this Agreement.
Additional Services: any of the services as agreed to be provided by the Supplier to the Client under any duly signed Order.
Authorised Users: those employees, agents and independent contractors of the Client who are authorised by the Client to access the Branded Platform, use the Services and the Documentation. In the event of any independent contractor users' access to and use of the Services is limited to use solely in connection with the Client's business operations.
Agreement or SaaS Agreement: means this Agreement, together with the schedules, annexes, sections, Order and appendices thereto.
Applicable Law: all laws, statutes, regulations and codes relating to the activities of each Party under or in connection with this Agreement.
Affiliate: with respect to either Party, any legal entity that is:
(a) directly owning or controlling that Party; or
(b) under the same direct or indirect ownership or control as that Party; or
(c) directly or indirectly controlled by that Party;
for so long as such ownership or control lasts.
Ownership or control shall exist through direct or indirect ownership of fifty percent (50%) or more of the nominal value of the issued equity share capital or of fifty percent (50%) or more of the shares entitling the holders to vote for the election of the members of the board of directors or persons performing similar functions.
Business Day: a day other than a Saturday, Sunday or public holiday in the countries of each of the Parties when banks are open for business.
Commencement Date: the next day after the Acceptance Date.
Confidential Information: means all information, of whatever nature, whether orally or in writing, in whatever form, including that in electronic format on any media and/or transmitted through means of electronic or other communication, regarding a Party or the Parties or their Affiliates, including the Documentation, the Platform and the Agreement, and shall at all times include but not be limited to the following:
(a) the existence and terms of this Agreement or any agreement entered into in connection with this Agreement;
(b) any information that would be regarded as confidential by a reasonable business person relating to:
(i) the business, assets, affairs, customers, clients, suppliers, or plans, intentions, or market opportunities of the disclosing party or its Affiliates (or of any member of the group of companies to which the disclosing party belongs); and
(ii) the operations, processes, product information, know-how, designs, trade secrets or software of the disclosing party or its Affiliates (or of any member of the group of companies to which the disclosing party belongs);
(c) any information developed by the Parties in the course of carrying out this Agreement; and
(d) any information in the Documentation.
Data: information or data in any form or format, including text, numeric and still and moving images, files, database, diagrams, pictures, charts, analyses, text, numbers, corporate information, financial information, or any other information or data (including any information relating to End-Users), owned or controlled by each Party.
Data Protection Legislation: all applicable data protection and privacy legislation and regulatory requirements in force from time to time which apply to a Party relating to the use of personal data (including, without limitation, the privacy of electronic communications).
Documentation: the documents made available to the Client in English, online or offline from time to time, which set out a technical description of the Platform and its functions, as amended from time to time.
Effective Date: the date of this Agreement.
Equipment: laptops, modems, hardware, servers, software, operating systems, networking, web servers and the like that are needed to connect to, access or otherwise use the Services.
End-User: the customer of the Client.

Jakub Novacek Ada Aguilera

Fees: the Implementation Services Fees, Standard Fees and any other Fees for additional services, if applicable (as agreed in each Order).

Intellectual Property Rights or IPR: patents, utility models, rights to inventions, copyright and related rights, trademarks and service marks, trade names and domain names, rights in get-up, goodwill and the right to sue for passing off or unfair competition, rights in designs, rights in computer software, database rights, rights to preserve the confidentiality of information (including know-how and trade secrets) and any other Intellectual Property Rights, including all applications for (and rights to apply for and be granted), renewals or extensions of, and rights to claim priority form, such rights and all similar or equivalent rights or forms of protection which subsists or will subsist, now or in the future, in any part of the world.

Implementation Services: as defined in the Statement of Works which essentially are the works to be performed for the customization and designing of the Platform into the Branded Platform as well as the implementation, installation, integration and testing of the Branded Platform according to the Order.

Heightened Cybersecurity Requirements: any laws, regulations, codes, guidance from regulatory and/or advisory bodies (whether binding/mandatory or not), international and national standards, industry schemes and sanctions, which are applicable to either the Client or an Authorised User or End-Users relating to security of network and information systems and security breach and incident reporting requirements, which may include the cybersecurity Directive ((EU) 2016/1148), Commission Implementing Regulation ((EU) 2018/151), the Network and Information Systems Regulations 2018 (SI 506/2018), all as amended or updated from time to time.

Marks:

(a) any trademarks, trade names, service marks, trade dress, logos, URLs and domain names;
(b) any identifying slogans and symbols;
(c) any abbreviation, contraction or simulation of any of the items in paragraph (a) or paragraph (b); and
(d) the “look and feel”,

of a Party to this Agreement, whether or not registered.

Normal Business Hours: 08:00 am to 17:00 pm CET local time at the jurisdiction of both Parties, each Business Day.

Order: a binding document executed by the Parties under the SaaS Agreement, which specifies the selected services, applicable fees, delivery timelines, and other commercial and operational terms governing the Client’s use of the SaaS Services. Each Order is subject to and incorporates by reference all terms and conditions of the main SaaS Agreement, except where expressly modified or superseded within the Order itself.

Object Code: the human readable form of the machine-readable code of the Software.

Open-Source Software: software subject to the provision of open source licenses.

Platform: the online trading Software platform provided by the Supplier as part of the Services and the Supplier's infrastructure and cloud computing platform and runtime environment.

Profit: the profit made by the Client from the activity of End-Users via the Branded Platform (profit and loss), less any value added tax or other sales tax on them, any out of pocket expenses incurred by the Supplier in providing the Services hereunder. Such profit to be calculated by the Supplier’s systems and displayed via the admin panel of the Branded Platform.

SaaS Services: the hosting and availability of the Branded Platform to the Client online in accordance with the terms and conditions of this Agreement, including the hosting of any applications on the Branded Platform, and such other services as the Supplier may decide, at its discretion, to integrate into the Branded Platform from time to time.

Services: the SaaS, Implementation, Support and any Additional Services (if applicable) provided by the Supplier to the Client via the Client’s domain (as agreed in the Order).

Software: any proprietary application version of software, in machine readable Source Code (server-resident code, database schema, client-resident code) and Object Code including the Documentation related to such software.

Source Code: computer programming code in the form not readily perceivable by humans and suitable for machine execution without the intervening steps of interpretation or compilation.

Support Services: the maintenance and support services provided by the Supplier to the Client as specified in the Agreed Service Levels as well as any training services.

Standard Fees: as agreed in each Order signed by both Parties.

Term: as defined in the Order and shall include any Renewal Term if applicable.

Virus: anything or device (including any software code, file or programme) which may: prevent, impair or otherwise adversely affect the operation of any computer software, hardware or network, any

telecommunications service, equipment or network or any other service or device; prevent, impair or otherwise adversely affect access to or the operation of any programme or data, including the reliability of any programme or data (whether by rearranging, altering or erasing the programme or data in whole or part or otherwise); or adversely affect the user experience, including worms, trojan horses, viruses and other similar things or devices.

Vulnerability: a weakness in the computational logic (for example, code) found in software and hardware components that when exploited, results in a negative impact to the confidentiality, integrity, or availability, and the term Vulnerabilities shall be construed accordingly.

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SCHEDULE 3
to the SOFTWARE-AS-A-SERVICE WHITE LABEL AGREEMENT No. _____
Branded Platform and modules description

Parties agreed to follow contents of this Schedule in case of any discrepancies between the received and expected results after launch and use of Branded Platform.
Branded Platform - SaaS B2B solution for trading, which is designed to provide a package of services to a client in the field of online trading.
Branded Platform contains modules:

1. Registration
2. Traderoom
3. Technical Analysis
4. Deposit
5. Additional Features
6. Mobile Applications
7. Affiliate Program

1. Registration module

Purpose: The user is provided with an opportunity to trade via a desktop application installed on a desktop computer or laptop after registration on a platform.
System Requirements: The application is compatible with the Windows and macOS operating systems. The minimum system requirements for installation of the application are in the table below.

Operating System	System Requirements
Windows	● OS Version – Windows 7, 8, 8.1, 10 ● Video Card – DirectX 9
MacOS	● OS version – OS X 10.10 Yosemite or later ● Video Card – OpenGL 2.0-friendly
Web Browsers	● All popular Desktop and Mobile Browsers

2. Traderoom module

Purpose: The module is to provide the user with an option to trade.
The module contains a range of options to set up.

2.1. Account Types

There are two account types on the platform – Practice and Real.
The Practice account type is set by default.
The Practice account type is to provide the user with an option to test all the platform trading instruments and features without making real deposits.

2.2. Traderoom Settings

The settings are as follows:
Appearance – traderoom interface features are located in this section.
Trading – main trading features can be checked here.
Keyboard shortcuts – using those shortcuts will help to operate in the trade room faster.
Notifications – setting up notifications for deals, transactions, and other actions in the account.
Privacy – section allows the user to specify which personal data should be visible to other users of the platform.
About – section allows the user to find the application version and update it if necessary.

2.3. Main Menu

General functions, which do not include trading instruments, are distributed among sections in the main menu.

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2.3.1. Total Portfolio

Total Portfolio contains the data on positions, which are open currently, and a list of pending orders. Once a position is closed (manually or automatically) it is forwarded to the Trading History section and no longer appears in the total portfolio.

The Total Portfolio contains open positions according to the current balance. For example, if a user trades on a practice balance, only open positions on this balance will be reflected in the portfolio and vice versa.

2.3.2. Trading History

The Trading History section includes the data on closed positions, which a user can always filter according to the instrument. Positions are listed chronologically, starting from the most recent ones at the top of the list.

2.3.3. Support

In case of any questions regarding the application, the user can always contact the support department by using the corresponding section in the traderoom. Support chat is located at the top of the list all the time.

2.3.4. Market Analysis

The Market Analysis section contains the following tabs:

A. news;

B. economic calendar;

C. earnings calendar.

A. News – all important events from the economic world, which can affect asset price movement, are gathered in an automatically updated news feed. The original news language is English with an option to choose another one from the provided list.

B. The Economic calendar includes news and reports, which usually affect the prices of currency pairs, presented as underlying assets on the platform. Events are marked according to the strength of the impact on presented assets: OOO – high impact, OO – medium impact, O – low impact.

C. The Earnings calendar represents financial reports of publicly traded companies, which act as underlying assets on the platform.

2.3.5. Tutorials

If a user needs to check how trading instruments and other features of the platform work, they can use the Tutorials tab – video tutorials will help to learn all the features of the platform.

Tutorials menu contains sections:

A. Basics – these video tutorials will show how the platform works in general.

B. Contract Trading – videos from this section will help to understand how to trade contracts and Digital contracts and what contracts are.

C. Margin trading – videos from this section will help to understand what margin forex is.

D. Technical analysis, fundamental analysis – such video tutorials will give a basic understanding of how to apply different types of asset price analysis to a user's trading strategy.

2.3.6. Help

This page contains answers to the most frequently asked questions.

This page is categorised in the following sections:

- general questions;
- trading (how trading instruments and features work);
- depositing funds;
- withdrawing funds;
- account (personal data change, password resetting);
- account verification;
- tournaments.

2.3.7. Alerts

There are two types of alerts in the main menu:

1. active alerts – set alerts that have not yet been applied;
2. history – alerts that have already been applied.

In both sections, it is possible to sort alerts only according to the current asset.

2.3.8. Chart Layout

In this section, the user can set up the location of the chart layout in the trade room.

2.3.9. Chart Type

In this section, the user can choose chart visualisation from the following chart types:

- Line (area)
- Japanese candles
- Bars
- Heikin-Ashi

2.3.10. Candle Time Period

If the user uses one of the following chart types (Candlesticks, Bars, Heikin-Ashi) the time interval of each candle/bar can be customised in the chart settings

2.3.11. Chart Scale

In this section, the user can choose a chart scale timeframe.

3. Technical Analysis

3.1. Graphical Tools

Graphical tools are types of technical analysis indicators, whose purpose is to help the user to predict the price movement of an asset more accurately.

It is possible to draw and apply graphical tools directly on the chart.

The following graphical tools are presented on the platform

- Line.
- Trend line.
- Horizontal line.
- Vertical line.
- Fibonacci lines.

3.2. Indicators

This section contains useful information on technical indicators and widgets, available in the traderoom. The purpose of technical indicators is to correctly predict the price movement of an asset.

3.3. Templates

If the user needs to save a combination of indicators with specific settings, a template can be created.

3.4. Traders' Sentiment

This widget is placed on the left-hand side of the trade room and shows the percentage of users who opened higher/lower, buy/sell positions, meaning – positions in opposite directions for a chosen asset.

This widget does not consider any other data except the asset and the direction of the position.

3.5. High and Low Values

When this widget is enabled, historical minimum and maximum values of the asset price for a certain time period are reflected on the chart. The time frame can be selected in the widget settings

3.6. News

In addition to the news feed presented in the main menu, market news can be displayed under the chart at the time of its publication.

When a user clicks on a news headline, a window will appear with detailed information and assets that this news may affect.

3.7. Volume

A volume widget is used for identifying the popularity of an asset at a particular time.

The widget shows how much of a current asset was bought or sold over a period of time, which is determined by the selected candle/bar interval.

It is possible to see the value of the volume by hovering the mouse/touchpad arrow on the candle/bar or on the bar of the volume widget.

3.8. Scripts

Scripts allow creating user's personal analysis tools.

3.9. Trading Signals

Trading signals allow the user to select pre-configured indicator patterns for technical analysis of changes in the asset price on the market.

The user can also select a separate indicator, or a combination of them.

4. Deposit

Purpose: The module is to provide the user with an option to deposit funds right from the application.
To make a transaction, it is necessary to choose a payment method to be used.
The availability of payment methods depends on the user's country of residence.

5. Additional Features

5.1. Cashback

Cashback is a bonus program, which gives a trader the opportunity to accumulate and receive a sum of money to a real balance if certain conditions are met.

5.2. Deposit Bonus

Deposit Bonus is a bonus program, which allows a user to get an additional sum of money on the real balance if they make a deposit.
The higher the deposit amount, the more bonus funds will be credited to the balance.
A user can withdraw money earned with the bonus funds only when the required trading turnover is reached.

5.3. Islamic Account

Commissions on the platform, such as overnights, are charged as a percentage of the investment amount, which is unacceptable to devout Muslims.
Islamic account is a special type of account, which considers the requirements of Shariah and guarantees the absence of any commissions.

5.4. Leaderboard

The Leaderboard is formed based on users' profit on a real balance within a certain period – a week.
Positions, closed in loss, are not included in the calculation and do not affect a user position in the leaderboard.

5.5. Tournament

A Tournament is a competition between traders, in which everyone can participate for a set fee.
Each participant receives a tournament account with the same amount of money.
The user can trade any assets and invest any available funds.
The winner is the trader who finishes the tournament with the most money on the tournament account.
The prize pool is usually shared between the best traders – from 9 to 30.

5.6. Public Chat

There are public chats in the tab, where platform users can communicate with each other.
Public chats are divided according to the following parameters:

5.6.1. Chat language.

The user will see a public chat in a language, which is set as an interface language in the application, you can change it in the trade room settings.

5.6.2. Trading instrument.

The user can chat about various instruments, e.g., Stocks, Forex, etc.
There is a code of conduct in public chats, in case of its violation, a user can be blocked in a particular public chat temporarily or permanently. It does not affect the status of the user's account.

6. Mobile Applications

6.1. System Requirements

A mobile application is ready to be installed on such devices as a mobile phone or a tablet.
This application is designed for devices, supported by the iOS and Android operating systems.
The minimum system requirements for installation of the application:

- Minimum required operating system version for iOS devices – iOS 12.1 or later.
- Minimum required operating system version for Android devices – Android 5.1 or later.

6.2. Account Registration

After successfully installing the application on the device, the user can register an account if they do not already have one.

It is possible to open an account using social networks, if there is already a registered account in the selected social network. In this case, the user does not have to enter personal data in the registration form.

6.3. Traderoom

6.3.1. Account Types

There are two account types on the platform – Practice and Real.

The Practice account type is set by default.

The Practice account type is to provide the user with an option to test all the platform trading instruments and features without making real deposits.

In the mobile version it is possible to test without registering an account. This way the user has access to all the platform's features and 10,000 training funds.

6.3.2. Traderoom Settings

Traderoom settings are located in the main menu and include the following sections based on a user's device platform.

On Android devices:

- Trading – main trading features can be checked here.
- Security – settings for features, which increase the safety of your account.
- Cards – this section contains all the data of cards, used for deposits.
- Notifications – setting up notifications on deals, transactions and other actions in the account.

On iOS devices:

- Trading – main trading features can be checked here.
- Security – settings for features, which increase the safety of your account.
- Cards – this section contains all the data of cards, used for deposits.
- Notifications – setting up notifications on deals, transactions and other actions in the account.
- Active sessions – a list of active sessions, that is device and IP-address data, where you're logged in to the account.
- Market analysis – news feed settings.

6.3.3. Main Menu

General functions, which do not include trading instruments, are distributed among sections in the main menu.

A. **The Portfolio** contains the data on positions, opened and closed, and a list of pending orders.

B. **The Market Analysis** contains the following tabs:

- News – all important events from the economic world, which can affect asset price movement, are gathered in an automatically updated news feed. Generally, the original news language is English, but the user can choose another one from the provided list, in this case it will be an automated translation. A button to switch to the translated version is located at the top of the feed.
- The Forex calendar includes news and reports, which usually affect the prices of currency pairs, presented as underlying assets on the platform (Figure 33). Events are marked according to the strength of impact on presented assets: OOO – high impact, OO – medium impact, O – low impact.
- The Earnings calendar represents financial reports of publicly traded companies, which act as underlying assets on the platform.

C. **The Alerts** shows a list of alerts, which are not applied yet

D. **The Support Chat** provides a user with an option to contact the support department by using the corresponding section in the traderoom.

6.4. Technical Analysis

6.4.1. Graphical Tools

Graphical tools are types of technical analysis indicators, whose purpose is to help the user to predict the price movement of an asset more accurately. It is possible to draw and apply graphical tools directly on the chart.

6.4.2. Indicators

This section contains useful information on technical indicators and widgets, available in the traderoom. The purpose of technical indicators is to correctly predict the price movement of an asset.

6.4.3. Templates

If the user needs to save a combination of indicators with specific settings, a template can be created.

6.4.4. Widgets

Widgets are created to make your trading experience more convenient and efficient.

6.4.5. Trading Signals
Trading signals allow the user to select pre-configured indicator patterns for technical analysis of changes in the asset price on the market (for Android device users only). The user can also select a separate indicator, or a combination of them.

6.5. Deposit
Purpose: The section is to provide the user with an option to deposit funds right from the application.
To make a transaction, it is necessary to choose a payment method to be used.
The availability of payment methods depends on the user's country of residence.

7. Affiliate Program
This module allows to set up participation in an affiliate program with any brand of a B2B partner.
The service allows setting up partnership interaction using one or all of the proposed types of partnership.
Available partnership types:

7.1. Online (Affiliate)
The Affiliate Program provides reliable and convenient tools for attracting new users to the platform. After registering in the system, the partner receives a link to place it in their sources. The program is designed to attract traders online, the partner should not be familiar with their traders.

7.2. Offline (Introducing Broker)
The program is designed to attract traders offline, the partner can be familiar with their traders. Therefore, it is not recommended to use the CPA model for IB partners because an offline partner can register multiple accounts from one device. The partner is an unofficial representative of the broker in the corresponding geolocation.

7.3. Affiliate Settings

7.3.1. Revenue Share
The partner is paid remuneration according to the broker's profit on the trader attracted by them during the entire period of the trader's activity on the platform.
Available for the Affiliate Partner and Introducing Broker

7.3.2. CPA
The partner receives a one-time charge from each trader attracted by them according to this model. The price for attraction is indicated, considering the country and the activity of the trader. Accrual occurs when the turnover of the attracted trader reaches the level set when creating the offer.
Available for the Affiliate Partner.

7.3.3. Spread Share
The partner receives profit from the spread for each executed transaction of the trader attracted by them. The price per spread depends on the trading volume of the transaction.
Available for Introducing Broker.